

Naval Facilities Engineering Systems  
Command (NAVFAC), Atlantic  
**NON-DISCLOSURE AGREEMENT**

I, \_\_\_\_\_, an individual official, employee, consultant, or subcontractor of or to \_\_\_\_\_ (the authorized non-Federal entity), intending to be legally bound, consent to the terms in this agreement in consideration of being granted access to Controlled Unclassified Information, specified below.

*Signer acknowledges the category or categories of information that they may have access to, and the signer's willingness to comply with the standards for protection, by placing their initials in front of the applicable category or categories below:*

Initials:

**Controlled Unclassified Information (CUI) Categories:**  
**CEII - Critical Energy Infrastructure Information**  
**CRIT - General Critical Infrastructure Information**  
**WATER - Water Assessments**

As used in this agreement and as defined in 32 CFR Part 2002, Controlled Unclassified Information (CUI) is information the Government creates or possesses, or that an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Government-wide policy (LRGWP) requires or permits an agency to handle using safeguarding or dissemination controls. However, CUI does not include classified information [Information that Executive Order 13526, *Classified National Security Information*, December 29, 2009 (3 CFR, 2010 Comp., p. 298), any predecessor or successor order, or the Atomic Energy Act of 1954, as amended, requires agencies to mark with classified markings and protect against unauthorized disclosure] or information a non-executive branch entity possesses and maintains in its own systems that did not come from, or was not created or possessed by or for, an executive branch agency or an entity acting for an agency.

The LRGWP may require or permit safeguarding or dissemination controls in three ways: (1) Requiring or permitting agencies to control or protect the information but providing no specific controls, which makes the information CUI Basic; (2) Requiring or permitting agencies to control or protect the information and providing specific controls for doing so, which makes the information CUI Specified; or (3) Requiring or permitting agencies to control the information and specifying only some of those controls, which makes the information CUI Specified, but with CUI Basic controls where the authority does not specify.

I attest that I am familiar, and will comply, with the standards for accessing, disseminating, handling, and safeguarding the information to which I am granted access as cited in this agreement and in accordance with 32 CFR Part 2002, applicable LRGWP, and with the guidance provided to me by NAVFAC, Atlantic relative to the category of information.

I understand and agree to the following conditions for access to the information indicated above:

1. Non-disclosure: I agree to not disclose any CUI to which I am granted access to anyone who, or anything that, is not granted such access pursuant to an applicable lawful Government purpose. I understand my responsibilities to protect and not disclose CUI except for, and to people with, an appropriate lawful Government purpose. To ascertain whether someone or something is authorized access, pursuant to an applicable lawful Government purpose, to CUI that is under my control or in my possession, I will do so according to 32 CFR Part 2002, NAVFAC, Atlantic guidance, and applicable LRGWP.
2. Scope of CUI: I understand that the CUI to which I am granted access includes any CUI I create or use on behalf of or for the Government, CUI I receive from the Government to maintain, handle, transmit, or use (for research, in derivative documents, etc.), or CUI originating from another source (such as CUI generated for the Government by a contractor or research entity).
3. Training: I acknowledge that I have undergone training concerning the nature and protection of the CUI to which I have been provided access, including procedures to follow in ascertaining whether other people to whom I contemplate disclosing this information are approved to access it pursuant to an appropriate lawful Government purpose, and that I understand this training and these procedures.
4. Security/control: I am obligated to protect CUI to which I am granted access from unauthorized disclosure, in accordance with the terms of this agreement, 32 CFR Part 2002, NAVFAC, Atlantic guidance, and the LRGWP applicable to the specific categories of CUI to which I am granted access.
5. Reporting breaches: I agree that I shall promptly report to appropriate officials, in accordance with the guidance issued for the applicable category of CUI, any unauthorized disclosure that I have knowledge of whether or not I am personally involved. I also understand that my anonymity will be preserved to the extent possible when reporting such violations.
6. Time: I understand that all conditions and obligations imposed upon me by this agreement apply during the time I am granted access to CUI, and at all times thereafter while such information remains controlled. These conditions and obligations may no longer apply if I am explicitly released in writing by an authorized representative of NAVFAC, Atlantic or the United States Government.
7. Breach: If I violate the terms and conditions of this agreement, such violation may result in cancellation of my access to CUI, and, depending upon the LRGWP that governs the CUI, may result in civil and criminal sanctions. This may also serve as a basis for denying me access to other types of information under NAVFAC, Atlantic's control.
8. Assignee: I assign to the United States Government all royalties, remunerations, and emoluments that have resulted, will result, or may result from any disclosure, publication, or revelation of CUI to which I am granted access that is inconsistent with the terms of this agreement.
9. Remedies: This agreement is made and intended for the benefit of the United States Government and may be enforced by the United States Government or the authorized non-Federal entity. By granting me access to CUI in this context, the United States Government may seek any remedy available to it to enforce this agreement, including, but not limited to, application for a court order prohibiting disclosure of CUI in breach of this agreement. I understand that if I violate the terms and conditions of this agreement, I could be subjected to administrative, disciplinary, civil, or criminal action, as appropriate, under the LRGWP applicable to the category of CUI involved, and neither

the United States Government nor the non-Federal authorized entity have waived any statutory or common law evidentiary privileges or protections that they may assert in any administrative or court proceeding to protect any CUI to which I have been given access under the terms of this agreement.

10. Severability: Each provision of this agreement is severable. If a court should find any provision of this agreement to be unenforceable, all other provisions shall remain in full force and effect.
11. Other agreements: My execution of this agreement shall not nullify or affect in any manner any other secrecy or non-disclosure agreement(s) that I have executed or may execute with NAVFAC, Atlantic, the United States Government, or any of its other departments or agencies.
12. Signing this agreement does not bar disclosures as required by superseding authorities of existing or future LRGWP.
13. I read this agreement carefully and my questions, if any, were answered. I acknowledge that NAVFAC, Atlantic has made available to me any agency guidance, LRGWP, or other laws, regulations, or directives referenced in this agreement so that I may read them at this time, if I so choose.

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NAVFAC, Atlantic

## **NON-DISCLOSURE AGREEMENT**

### **Acknowledgement**

|                     |                                               |                   |
|---------------------|-----------------------------------------------|-------------------|
| Typed/Printed Name: | Government/Department/Agency/Business Address | Telephone Number: |
| <br><br><br>        |                                               |                   |

I make this agreement in good faith, without mental reservation or purpose of evasion.

Signature:

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### **ACCEPTANCE:**

|                     |                                               |                   |
|---------------------|-----------------------------------------------|-------------------|
| Typed/Printed Name: | Government/Department/Agency/Business Address | Telephone Number: |
| <br><br><br>        |                                               |                   |

Signature:

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